

TENTATIVE RULING

Case: Estrada v. Garcia
Case No. CV2025-2260

Hearing Date: August 26, 2026 Department Fourteen 9:00 a.m.

Motion to compel further responses to tax-related discovery:

Plaintiff Felipe Estrada’s motion to compel further responses to tax-related discovery is **GRANTED IN PART**. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) As to defendant Daniel Navarrete Garcia’s response to interrogatory no. 15, the Court finds that defendant has failed to justify his objections. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

As to the other discovery responses, the Court declines to require defendants to provide further responses. Specifically, while the “statutory tax return privilege is not absolute,” “[t]he privilege will not be upheld” in three specific circumstances. (*Weingarten v. Superior Court* (2002) 102 Cal.App.4th 268, 274.) Plaintiff asserts that the third exception applies, such that this Court should compel defendants to provide their tax returns in response to his discovery requests. (See Ps & As, pp. 9-10.) However, this exception “is narrow and applies only when warranted by a legislatively declared public policy.” (*Weingarten, supra*, 102 Cal.App.4th at p. 274.) Indeed, a “trial court has broad discretion in determining the applicability of a statutory privilege.” (*Ibid.*) While plaintiff relies upon *Li v. Yan* (2016) 247 Cal.App.4th 56 and *Weingarten, supra*, 102 Cal.App.4th, the Court finds the circumstances presented in these cases distinguishable from the record here. (See *Li, supra*, 247 Cal.App.4th at pp. 66-69; *Weingarten, supra*, 102 Cal.App.4th at pp. 275-277.)

Defendant Garcia is **DIRECTED** to serve a further response to special interrogatory no. 15 by **September 16, 2026**.

Plaintiff’s request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d).) As the Court is only ordering a further response to one special interrogatory, it finds that defendants acted with substantial justification in opposing the motion.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motions to be relieved as counsel:

Melanie De Marco of BPE Law Group P.C.’s unopposed motions to be relieved as counsel for defendants Rosa Hernandez De Anda and Daniel Navarrete Garcia is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a**

copy of the signed order on the client. (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for sanctions:

Plaintiffs Felipe Estrada and Alicia Navarrete's unopposed motion for sanctions against defendant Daniel Navarrete Garcia ("Garcia") is **GRANTED IN PART**. (Code Civ. Proc., § 128.5.) Based on the evidence presented by plaintiff, this Court finds that defendant engaged in frivolous actions and/or tactics made in bad faith. (*Ibid.*; Crisanto decl., ¶¶ 2-4; Estrada decl., ¶¶ 3-6; Navarrete decl., ¶¶ 3-6.) Therefore, pursuant to Code of Civil Procedure section 128.5(a), the Court imposes sanctions, in the amount of **\$10,868.74**, against Garcia only. (Schaps decl., ¶¶ 10-13.) The Court declines to impose sanctions for time not yet incurred. Garcia shall pay this sanction by **September 28, 2026**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, then the Court will execute plaintiffs' proposed order, lodged July 28, 2026.

TENTATIVE RULING

Case: **Gavin v. Inn at Park Winters et al.**
 Case No. CV2025-2565

Hearing Date: **August 26, 2026** **Department Thirteen** **9:00 a.m.**

The Court **SUSTAINS** defendants Inn at Park Winters, LLC, John Martin, and Rafael Galiano's (collectively, "defendants") evidentiary objection numbers 1, 3-9 to the declaration of Sharon Gavin. Defendants' remaining objections are **OVERRULED**.

Defendants' objections to the declaration of Brian McMahon are **OVERRULED**.

The Court **DENIES** plaintiff Sharon Gavin's ("plaintiff") application for right to attach order. (Code Civ. Proc., § 484.010 et seq.) Although the evidence is sufficient to establish the making of the loan of \$300,000, without the evidence that is kept out by objections, the remaining evidence is not sufficient to fully establish the calling of the loans due and the nonpayment thereof. Therefore, the Court finds that plaintiff fails to show a prima facie claim of all requisite elements for a cause of action based upon breach of contract. (Code Civ. Proc., §§ 484.030, 484.090, subd. (a)(2); *Santa Clara Waste Water Co. v. Allied World National Assurance Co.* (2017) 18 Cal.App.5th 881, 885; *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; *Lydig Construction, Inc. v. Martinez Steel Corp.* (2015) 234 Cal.App.4th 937, 944 [plaintiff has the burden of establishing probable validity by means of competent declarations and supporting records showing amount and entitlement].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.